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Calif. Gov. Newsom Strengthens California's Nation-Leading Gun Safety Laws

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SACRAMENTO, California, Sept. 27 -- Gov. Gavin Newsom, D-California, issued the following news release on Sept. 26, 2023:

In the wake of shootings across the country that have left at least 104 people dead over the past 72 hours -- and following Friday's decision by U.S. District Court Judge Benitez blocking California's large-capacity magazine ban -- Governor Gavin Newsom today strengthened California's nation-leading gun safety laws.

Joined by Attorney General Rob Bonta, lawmakers, and gun safety advocates and survivors, the Governor signed multiple new measures into law, including SB 2 (Portantino) strengthening the state's public carry regulations; SB 452 (Blakespear) requiring microstamping on handgun cartridges to help trace guns used in crimes; AB 28 (Gabriel) enacting a first-in-the-nation effort to generate $160 million annually on the sale of bullets to improve school safety and gun violence intervention programs; AB 455 (Quirk-Silva and Papan) keeping guns out of the hands of potentially dangerous individuals; AB 725 (Lowenthal) updating the definition of a firearm to include ghost gun parts; and AB 732 (Mike Fong) strengthening the process for removing firearms from people who are prohibited from owning them.

WHAT GOVERNOR NEWSOM SAID: "While radical judges continue to strip away our ability to keep people safe, California will keep fighting -- because gun safety laws work. The data proves they save lives: California's gun death rate is 43% lower than the rest of the nation. These new laws will make our communities and families safer."

"Addressing gun violence is critical to protecting public safety; we cannot pretend that they are distinct problems," said Attorney General Rob Bonta. "In California, we won't settle for inaction when it comes to saving lives. Senate Bill 2 will help prevent violence by ensuring that dangerous individuals may not carry concealed guns in public and prohibiting the carry of dangerous weapons in sensitive places where our children gather. With this law, we are boldly advancing California's successful, data-driven strategy to prevent gun violence and save lives. I sponsored Senate Bill 2 to provide stronger protections for our communities, and am grateful for the partnership demonstrated by author Senator Portantino and our Governor as together we enact this law to better protect California residents."

"I am grateful for Governor Newsom's bold leadership on gun safety and thank him for signing SB 2," said Senator Anthony Portantino (D-Burbank). "I was proud to partner with the Governor, Attorney General Bonta and amazing grassroots activists across California on this needed effort to strengthen our existing concealed permit laws and to ensure that Californians are made safer from gun violence. SB 2 is constitutional and consistent with the Supreme Court's guidance in the Bruen decision. When SB 2 is implemented, it will certainly increase public safety and I believe save lives."

"I thank Gov. Newsom for co-sponsoring and signing SB 452, which is another big step forward in our efforts to reduce gun violence, protect the public, and catch criminals," said Senator. Catherine Blakespear (D-Encinitas). "SB 452 will put to use readily available technology to help law enforcement identify the guns used illegally and the people behind them. I applaud Gov. Newsom for his leadership on this issue."

"It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States," said Assemblymember Jesse Gabriel (D-Encino). "AB 28 will fund critical violence prevention and school safety programs that will save lives and protect communities across the State of California. I am deeply grateful to Governor Newsom for signing AB 28 and for his outstanding national leadership in addressing gun violence."

SB 2 by Senator Portantino (D-Burbank) strengthens California's restrictions regarding public carry laws by enhancing the existing licensing system - ensuring those permitted to carry firearms in public are responsible and law-abiding individuals -- setting a minimum age requirement of 21 years of age, ensuring stronger firearm training requirements, and identifying certain sensitive public places.

SB 452 by Senator Blakespear (D-Encinitas) requires all semiautomatic pistols sold in California to use microstamping technology. The law -- using microstamping technology -- will require guns sold or transferred in the state by 2028 to etch unique identifiers on expended cartridges, providing law enforcement with valuable information to help identify suspects in crime-linked shootings.

AB 28 by Assemblymember Gabriel (D-Encino) imposes an 11 percent excise tax on firearms and ammunition sold by gun manufacturers and dealers. AB 28 is estimated to generate $160 million annually to fund school safety and violence prevention programs, including initiatives to prevent school shootings, bolster firearm investigations, reduce retaliatory violence, and remove guns from domestic abusers.

AB 455 by Assemblymembers Sharon Quirk-Silva (D-Fullerton) and Diane Papan (D-San Mateo) creates a process by which a court can prohibit a person participating in a mental health diversion program from purchasing or possessing firearms.

AB 725 by Assemblymember Josh Lowenthal (D-Long Beach) amends the definition of a firearm to include the frame or receiver of the weapon, including a firearm precursor part, for purposes of having to report a lost or stolen firearm.

AB 732 by Assemblymember Mike Fong (D-Alhambra) strengthens the process for removing firearms from people who are prohibited from owning them due to a criminal conviction by increasing the court and prosecuting attorney's roles in ensuring that guns are relinquished at the time of conviction. Also requires increased coordination between the Department of Justice and local agencies to address the backlog of individuals who may not have relinquished their firearms.

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A complete list of the bills the Governor signed today is below:

* AB 28 by Assemblymember Jesse Gabriel (D-Encino) - Firearms and ammunition: excise tax.

* AB 92 by Assemblymember Damon Connolly (D-San Rafael) - Body armor: prohibition.

* AB 97 by Assemblymember Freddie Rodriguez (D-Pomona) - Firearms: unserialized firearms.

* AB 301 by Rebecca Bauer-Kahan (D-Orinda) - Gun violence restraining orders: body armor.

* AB 355 by Assemblymember Juan Alanis (R-Modesto) - Firearms: assault weapons: exception for peace officer training.

* AB 455 by Assemblymember Sharon Quirk-Silva (D-Fullerton) - Firearms: prohibited persons.

* AB 574 by Assemblymember Reginald Byron Jones-Sawyer, Sr. (D-Los Angeles) - Firearms: dealer records of sale.

* AB 724 by Assemblymember Vince Fong (R-Bakersfield) - Firearms: safety certificate instructional materials.

* AB 725 by Assemblymember Josh Lowenthal (D-Long Beach) - Firearms: reporting of lost and stolen firearms.

* AB 732 by Assemblymember Mike Fong (D-Alhambra) - Crimes: relinquishment of firearms.

* AB 762 by Assemblymember Buffy Wicks (D-Oakland) - California Violence Intervention and Prevention Grant Program.

* AB 818 by Assemblymember Cottie Petrie-Norris (D-Irvine) - Protective orders.

* AB 1089 by Assemblymember Mike Gipson (D-Carson) - Firearms.

* AB 1406 by Assemblymember Kevin McCarty (D-Sacramento) - Firearms: waiting periods.

* AB 1420 by Assemblymember Marc Berman (D-Menlo Park) - Firearms.

* AB 1483 by Assemblymember Avelino Valencia (D-Anaheim) - Firearms: purchases.

* AB 1587 by Assemblymember Philip Ting (D-San Francisco) - Financial transactions: firearms merchants: merchant category code.

* AB 1598 by Assemblymember Marc Berman (D-Menlo Park) - Gun violence: firearm safety education.

* SB 2 by Senator Anthony Portantino (D-Burbank) - Firearms.

* SB 241 by Senator Dave Min (D-Irvine) - Firearms: dealer requirements.

* SB 368 by Senator Anthony Portantino (D-Burbank) - Firearms: requirements for licensed dealers.

* SB 417 by Senator Catherine Blakespear (D-Encinitas) - Firearms: licensed dealers.

* SB 452 by Senator Catherine Blakespear (D-Encinitas) - Firearms.

California's gun safety laws save lives. The Golden State is ranked #1 for gun safety and last year experienced a death rate 43% lower than the national average. Over the last decade, gun laws helped save 19,000 Californians. Since the early 1990s, California has cut its gun death rate in half and if other states shared California's gun death rate, an estimated 140,000 Americans would still be alive today.

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